

# **FHS Knowledge and Reality: Epistemic Injustice**

## **Readings**

Core Readings (Required):

Fricker, Miranda (2007) *Epistemic Injustice*. Oxford: Oxford University Press. Intro, ch 1&2

Maitra, Ishani (2010). The nature of epistemic injustice. *Philosophical Books* 51, 195-211.

McKinnon, R. "Epistemic Injustice" in *Philosophy Compass* 2016 pp437-446

Coady, David (2010). Two concepts of epistemic injustice. *Episteme* 7(2), 101-113.

Coady, David (2017). Epistemic injustice as distributive injustice. In Ian James Kidd, José Medina, and Gaile Pohlhaus, Jr., (eds.), *The Routledge handbook of epistemic injustice*, London: Routledge.

Further Readings:

Dotson, Kristie (2011) Tracking epistemic violence, tracking practices of silencing. *Hypatia* 26(2), 236-257.

Luzzi, Frederico (2016). Testimonial injustice without credibility deficit. *Thought: A Journal of Philosophy* 5(3), 203-211.

Ian James Kidd, José Medina, and Gaile Pohlhaus, Jr., (eds.), *The Routledge handbook of epistemic injustice*, London: Routledge

## **Past Year Readings**

Is affording agents too much credibility ever a form of epistemic injustice? [2023-2024]

Is testimonial injustice always just a special case of distributive injustice? [2022-2023]

'[T]estimonial injustice demotes the speaker from informant to source of information, from subject to object. This reveals the intrinsic harm of testimonial injustice as epistemic objectification: when a hearer undermines a speaker in her capacity as a giver of knowledge, the speaker is epistemically objectified.' (FRICKER) Discuss. [2021-2022]

Does it matter if you are not taken seriously as a knower? [2020-2021]

'It is not possible to wrong someone epistemically; one can only be morally wronged in an epistemic context. Therefore, a specifically epistemic form of injustice does not exist.' Is this a good argument against the existence of epistemic injustice? [2019-2020]

## Part I: Is there such a thing as epistemic injustice?

### Summary and Broad Extensions/Critiques by McKinnon

Fricker's project

- Background on Credible Testimony
  - Epistemology of testimony: what features are required for the hearer to come to know, or at least justifiably believe, what a speaker tells them
  - Lackey: in order for a hearer to come to know something from a speaker's say-so, three conditions are needed
    - What the speaker says is true
    - The speaker is sufficiently reliable in their testimony
    - Hearer has some reason to think that the speaker is reliable
  - Another way to state this condition is that the speaker must be credible and that the hearer must make a credibility judgement about the speaker and the claim
  - Four sources of information to form credibility judgements
    - Information about the speaker themselves
    - Background knowledge on the content of the assertion
    - Information about the structural features of the assertion
    - Information about how the speaker said they did
- Motivation of epistemic injustice: when testimony goes systematically wrong
  - Problematic patterns in who we tend to believe and who we tend not to believe: we tend to believe people of a certain disposition or colour
  - Mismatch of credibility judgements with the actual credibility of the speaker → credibility deficit or credibility excess (too little or too much)
  - Fundamental recognition of knowledge as something social and that access to knowledge creation and dissemination is inherently political
  - Who the knower is – their identity – matters to our epistemology
  - Epistemic injustice are ways in which the agents are harmed qua epistemic agent → wronged specifically in her capacity as a knower
- Testimonial Injustice
  - Identity prejudices create the credibility deficits that produce testimonial injustice → while Fricker notes that some people enjoy credibility excess, she focuses exclusively on deficits
    - “The primary characterisation of testimonial injustice...remains such that it is a matter of credibility deficit and not credibility excess”
  - The Talented Mr Ripley: Marge knows that Tom killed Dickey rather than Dickey committing suicide but no one believes her and believes Tom's story instead because (i) Marge is a woman and the identity prejudice based on a stereotype that women are too emotional and irrational i.e. she just wants someone to blame and that (ii) Tom is a man

- People also tend to form identity prejudices that reduce the credibility of black men i.e. disputing that black people can feel empathy for white people in *To Kill a Mockingbird* which focuses on a trial of a black man accused for raping a white girl even though he was just trying to help her
- One way to understand testimonial injustice is that we have an unjust distribution of the credibility economy
- Hermeneutical Injustice
  - Hermeneutical resources: concepts shared in the 'social imagination' – concepts widely known and available for use in understanding oneself and communicating with others
    - Fricker: "our shared tools of social interpretation"
    - We all tend to understand what each other means by a headache because we've all experienced the phenomenon in some way
  - Hermeneutical injustice: injustice of having some significant area of social experiences obscured from collective understanding owing to a structural identity prejudice in the collective hermeneutical resource
    - Hermeneutical injustice is the result of hermeneutical marginalisation
  - We also have unevenly distributed access to concept generating resources, and knowledge → where a socially disadvantaged group is blocked whether intentionally or unintentionally from access to knowledge, or access to communicating knowledge due to a gap in hermeneutical resources, especially when these resources would help people understand the very existence and nature of marginalisation
    - Hermeneutical marginalisation
    - Like resistance to white privilege by white people in the US contexts → and they can resist the concept because they have hermeneutical resources
  - Central example: sexual harassment
    - Prior to the naming of a wide range of, particularly workplace, behaviours, women were unable to understand their own experiences and the discomfort they felt with the associated behaviours of men in terms of harassment → groping, leering and lewd comments and such in the workplace didn't typically rise to meet the standard for criminal harassment, so referring to them as harassment was unavailable and behaviours were dismissed as harmless flirting
    - But since the creation of the term and the behaviour was named, these behaviours were understood and 'sexual harassment' as a phrase was no longer absent from the social imagination
- Extensions
  - Mason: not just access to hermeneutical resources that matters but also the power structure of society

- While marginalised people might have access to the necessary hermeneutical resources to understand their own situation, dominant group members remain ignorant of these concepts in a way that perpetuates dominant group marginalisation
- Dominant groups are resistant to providing uptake: long history of black women's knowledge claims being rejected because their hermeneutical resources were not deemed acceptable by dominant groups
- Dotson: how epistemic harms constitutes epistemic violence and can contribute to epistemic oppression
  - One way to harm people is to harm them in their capacity as knowers and as epistemic agents: when we systematically exclude people of a particular social identity, such as women, people of colour, disabled people etc, we enact both epistemic and political violence
  - Epistemic oppression: epistemic exclusions afforded positions and communities that produce deficiencies in social knowledge
  - Wilful hermeneutical ignorance is a result of testimonial quieting: audience, due to an identity prejudice, doesn't properly regard the speaker as a knower → doesn't regard the speaker as a source of knowledge and the audience often does this for the wrong – often sexist or racist – reasons
    - Not just mere credibility deficit but her utterance is ignored entirely

### **Fricker's Epistemic Injustice**

Part A: The basic idea of epistemic injustice and social power

- That a form of injustice which harms people in their capacity as a knower
  - And that knowledge is fundamentally a social object
- Power can operate both actively and passively
  - A parking warden can impose fines as an act of active power, but this also passively influences our parking behaviour
- Power can be both dyadic i.e. because it relates one party who is exercising power on another party, but also purely structurally so there is no particular agent exercising it
  - Structural power: consider where a given social group is informally disenfranchised in the sense that, for whatever complex social reasons, they tend not to vote and there is no social agent or agency in particular that is excluding them
    - Power influencing them is thoroughly dispersed
  - Dyadic power relationships are also dependent upon coordination with 'social others' and are 'socially situated' → any operation of power is dependent

upon the context of a functioning social world i.e. shared institutions, shared meanings, shared expectations and so on

- Power a university professor has over her students in grading their work depends on the whole social context of university institutions and systems of grading
- Central notion of power: identity power
  - Operations of power which are dependent upon agents having shared conceptions of social identity – conceptions alive in the collective social imagination that govern what it is or means to be a woman or a man etc
  - Identity power is precisely an operation of power that depends significantly upon such shared imaginative conceptions of social identity
    - Gender, race etc
  - Identity power can take both dyadic and structural forms
    - Structural: informal disenfranchisement
    - Dyadic: direct racism and exclusion
  - Identity power interacts crucially with the sort of discursive exchange in which knowledge can be imparted from speaker to hearer i.e. testimonial exchange
- Identity power is an integral part of the mechanism of testimonial exchange because of the need for hearers to use social stereotypes as heuristics in their spontaneous assessments of their interlocutor's credibility
  - Use of stereotype can be entirely proper, misleading etc depending on the stereotype
  - If the stereotype embodies a prejudice that works against the speaker then there is (i) an epistemic dysfunction in the exchange because the hearer makes an unduly deflated judgement of the speaker's credibility and (ii) the hearer does something ethically bad since the speaker is wrongfully undermined in her capacity as a knower

## Part B: Testimonial Injustice

- Basic Idea: a speaker suffers a testimonial injustice just if prejudice on the hearer's part causes him to give the speaker less credibility than he would otherwise have given → someone is wronged as a giver of knowledge
  - Identity prejudice as a label for prejudices against people qua social type, resulting in the central case of testimonial injustice: the injustice that a speaker suffers in receiving deflated credibility from the hearer owing to identity prejudice on the hearer's part, as in the case where the police don't believe someone because he is black
  - So, the central case can be defined as identity-prejudicial credibility deficit

- Prejudice either results in the speaker receiving less credibility than she otherwise would have – a credibility deficit; or a speaker receiving more credibility than she otherwise would have – a credibility excess
  - Consider the discursive impact of a speaker's accent which carries a social charge that affects how a hearer perceives a speaker, but very often it also carries an epistemic charge → affects credibility
- Credibility deficits may not always be a bad thing
  - The stuttering Claudius, destined one day to be emperor of Rome, but who repeatedly escapes political murder on the way up owing to the fact he is generally taken to be a fool
- Nature of wrong that the speaker receives qua knower from epistemic injustice
  - Credibility deficits are disadvantageous in that it undermines, insult or withholds a proper respect for the speaker qua subject of knowledge
  - Credibility excess hardly does so to the speaker qua subject of knowledge so it does in itself no epistemic injustice and a fortiori no testimonial injustice
    - But consider someone who, due to social prejudices in his favour, is constantly epistemically puffed up around him → brings him lucrative employment but also may cause him to develop an epistemic arrogance that a range of epistemic virtues are put out of his reach → Fricker thinks this is constitutive of an epistemic harm but this is a special case of epistemic injustice because it is cumulative
- Harms done to the hearer
  - Purely epistemic harm done when prejudicial stereotypes distort credibility judgements: knowledge that would be passed on to a hearer is not received
    - Epistemic disadvantage to the hearer and a moment of dysfunction in the overall epistemic system
  - Prevents speakers from successfully putting knowledge into the public domain reveals that testimonial injustice as a serious form of unfreedom in our collective speech situation, and on the Kantian conception, the freedom of our speech situation is fundamental to the authority of the polity, even to the authority of reason itself
- Primary and secondary harms done to the knower
  - Primary aspect of the harm to the speaker where the subject is wronged qua knower – wronged in a capacity essential to human value
    - Capacity as a giver of knowledge to others is one side of that many-sided capacity significant for human beings – the capacity for reason
    - Primary effect is that the epistemic wrong bears a social meaning to the effect that the subject is less than fully human → they are degraded qua knower, and are symbolically degraded qua human → dehumanising

- Persistent testimonial injustice can inhibit the very formation of the self
- Secondary aspect of harm: follow up disadvantages, extrinsic to the primary injustice
  - Practical harm: If someone is subject to even a one-off testimonial injustice in a courtroom, so that he is found guilty instead of innocent, he may face a fine or experience punishment/or seem like she lacks the authority to progress in her management role
  - Epistemic Harm: lose confidence in his belief, or his justification for it and ceases to satisfy the conditions for knowledge or someone with background experience of persistent testimonial injustice may lose confidence in his general intellectual abilities → loss of epistemic confidence results in an ongoing failure to gain knowledge by preventing him from developing certain intellectual virtues (intellectual courage i.e. not backing down to objections and challenge in debate)
    - I think this is the only genuinely harm to the subject qua knower
- Distinguishing between innocent error i.e. non-culpable epistemic mistakes and actual injustice
  - Innocent error: error that is both ethically and epistemically non-culpable
    - Primarily because human judgement is fallible, and so it is inevitable that even the most skilled and perceptive hearers will on occasion come up with a mistaken judgement of a speaker's credibility or the hearer simply has a false belief about a speaker's level of expertise and so gives less credibility than she would otherwise have done
    - So long as the false belief is itself ethically and epistemically non-culpable → are there ever such cases
    - Example: consider a hearer who is an ethicist knows her interlocutor is an academic but believes him to be a medic since his name was listed under medical sciences and when the conversation turns to a debate around moral fictionalism, she afford the speaker a lower credibility than she would if she took him to be a fellow ethicist; unbeknownst to her, he is an ethicist with a specialism in medical ethics
    - This misjudgement does him no real testimonial injustice → but then we need to have a prior principle
    - Fricker: epistemic injustice is "reserve[d]...for cases in which there is something ethically bad about the hearer's misjudgement"
  - Ethically innocent but epistemically culpable error

- Same example as above but as a result of a careless web search or without due diligence → but Fricker still denies that it is a case of epistemic injustice
  - Ethical and epistemic culpability: individually necessary but jointly sufficient conditions
- Ethical culpability and epistemic culpability intersect in terms of prejudice
  - Typical examples of a black man receiving less credibility than he would otherwise have had in a courtroom because he is thought of as incapable of feeling empathy for white people
  - Charged with racial stereotypes and so use these stereotypes to assign deflated credibility → prejudicial credibility deficit
- Incidental vs systematic testimonial injustice
  - Incidental: a panel of referees on a science journal who have a domestic prejudice against a certain research method → disadvantaging the author by assigning him a deflated level of credibility → impact on the subject's life is highly localised and does not render the subject vulnerable to any other kinds of injustice (legal, economic, political)
  - Systematic: not just by prejudice simpliciter, but specifically by those prejudices that 'track' the subject through different dimensions of social activity (economic, legal, political, religious etc) → being subject to a tracker prejudice renders one susceptible not only to testimonial injustice but a gamut of different injustices, so when a prejudice generates a testimonial injustice, that injustice is systematically connected with other kinds of actual or potential injustice
- Main (and only) type of prejudice that tracks people in this way is prejudice relating to social identity i.e. identity prejudice
- Final characterisation with respect to central cases of testimonial injustice: the speaker sustains such a testimonial injustice iff she receives a credibility deficit owing to identity prejudice in the hearer; so the central case of testimonial injustice is identity-prejudicial credibility deficit
  - But we can also imagine identity-prejudicial credibility deficits that are not cases of systematic testimonial injustices → not central cases
  - Localised and incidental prejudices are not to be belittled, but it is just not represented as a broad pattern of social justice
- Fricker's deeper characterisation of prejudice in the credibility economy
  - Main point of entry of prejudice is that we make use of heuristics in our credibility judgement
    - Stereotypes are widely held associations between a given social group and one or more attributes: (i) neutral with regards to whether it is reliable or not, (ii) stereotypes may be held not only as beliefs but also in other dimensions of cognitive commitment: notably, those that may



have an affective aspect such as commitments which derive from the collective imagination and which may permit less transparency than beliefs, (iii) allows that stereotypes may have a positive or negative valence or neither, depending on whether the attribute is derogatory or complimentary or indifferent

- Stereotyping entails a cognitive commitment to some empirical generalisation about a given social group
  - This is where the epistemic culpability comes from especially if the stereotype is highly unreliable or prejudiced
  - Some stereotypes are necessary in our discursive exchanges because without them, we will be too slow to achieve normal spontaneity of credibility assignments
  - Identity prejudice at work in the stereotype: where the stereotype of historically powerless groups involve an association with some attribute inversely related to competence or sincerity or both (i.e. negative) and evolutionary inferiority
    - Generally unreliable empirical generalisation
  - But lack of reliability in generalisation is not enough to amount to an entirely non-culpable mistake because it could be a piece of collective epistemic bad luck such as the available evidence being misleading
- Epistemic culpability emerges from the idea that prejudice is most basically that of a pre-judgement, where this is most naturally interpreted as a judgement made or maintained without proper regard to the evidence
  - For this reason we should conceive of prejudice generally as something epistemically culpable
  - But there are exceptions in which it would take a very exceptional epistemic character to overcome those prejudices
- Prejudice is not always ethically ill-motivated and is broader than an ethically noxious motivation: (i) while prejudice is a judgement formed in a manner resistant to the evidence, and where this resistance is not caused by some kind of motivation on the part of the subject, this permits motivations which are not ethically bad, (ii) prejudice is not always against someone and can be in favour of someone
- Fricker focuses on negative identity prejudices i.e. prejudices with a negative valence held against people qua social type
  - A negative identity-prejudicial stereotype: a widely held disparaging association between a social group and one or more attributes, where this association embodies a generalisation that displays some (typically, epistemically culpable) resistance to counter-evidence owing to an ethically bad affective investment
  - Key sort of prejudice that is at work in systematic testimonial injustice

- How prejudicial stereotypes actually shapes a hearer's credibility judgement: via facilitating judgement of a speaker's credibility
  - The hearer essentially does not deliberate about how far to trust the speaker and simply perceives the speaker against the set of background assumptions about how far people like him are trustworthy about things like this in relation to people like her
  - It distorts the hearer's perception of the speaker
- Testimonial injustice without prejudice
  - Might be objected that under certain circumstances of epistemic bad luck, a hearer could perpetrate a testimonial injustice without harbouring any prejudice at all: reliable, non-prejudicial stereotypes often permit exceptions
  - Consider a hearer responsibly judges a speaker to be untrustworthy (because insincere) owing to the fact that the speaker avoids looking her in the eye, frequently looks askance, and pauses self-consciously in mid-sentence as if to work out his story
    - But this is just an idiosyncratic feature of his personal shyness → exception to an empirically reliable rule
  - Fricker thinks this is at worst a non-culpable case of testimonial injustice: hearer has not violated her obligations or is not blameworthy either epistemically or ethically
  - Fricker concludes that this is not a case of testimonial injustice: if the shy person is deemed to have been wronged, it begins to seem that epistemically wronging someone through no fault of one's own is too easy to do and testimonial injustice becomes cheap

### Part C: Hermeneutical Injustice

- Central Case: sexual harassment prior to the time the concept was invented and the experience was not understood
- Hermeneutical injustice stems from a gap in collective hermeneutical resources – a gap in our shared tools of interpretation – where it is no accident that the cognitive disadvantage created by this gap impinges unequally on different social groups
  - The unequal disadvantage derives from the fact that the members of the group that is most disadvantaged by the gap are, in some degree, hermeneutically marginalised – that is they participate unequally in the practices through which social meanings are generated
  - This sort of marginalisation can mean that our collective form of understanding are rendered structurally prejudiced in respect of content and/or style: the social experience of members of hermeneutically marginalised groups are left inadequately conceptualised and so ill-understood

- Nature of primary harm caused by hermeneutical injustice is analysed as a matter of someone suffering from a situated hermeneutical inequality: their social situation is such that a collective hermeneutical gap prevents in particular from making sense of an experience which it is strongly in their interest to render it intelligible
  - Wronged in their capacity as a subject of social understanding
- Hermeneutical injustice is not perpetrated by individuals, and will normally make itself apparent in discursive exchanges between individuals: there is something to be said about what virtue is called for on the part of the hearer
  - She cannot be blamed for a certain lack of trust she may feel towards the testimony of someone whose communicative labours may be hampered by hermeneutical injustice, since some lack of trust is epistemically justified – both the speaker and hearer are labouring with the same inadequate tools
  - But the epistemic goal of understanding would nonetheless be served by an intellectual virtue of hermeneutical justice being incorporated into the hearer's testimonial sensibility: the virtue is s.t. the hearer exercises a reflexive critical sensitivity to any reduce intelligibility incurred by the speaker owing to a gap in collective hermeneutical resources → alert to the possibility that her relative unintelligibility to him is a function of a collective hermeneutical impoverishment, and he adjusts or suspends his credibility judgement accordingly
  - This virtue, according to Fricker, is prima facie intellectual and not ethical, but reveals itself to be an ethical virtue as well

### **Coady's two views of epistemic injustice**

Central claim: Fricker dismisses too quickly that epistemic goods, such as information and education, can be characterised as epistemic, and that questions about their just distribution, like questions about the just distribution of other social goods, are distinctive and important

- Veritistic social epistemology: there is an intrinsic epistemic good "knowledge"
  - Goldman: the structure here is perfectly analogous to the structures of consequentialist schemes in moral philosophy. One type of state, such as happiness or utility, is taken to have fundamental or intrinsic moral value, and other items, such as actions, rules, or institutions, are taken to have instrumental value insofar as they tend to produce (token) states with fundamental value
  - VSE is a thin conception of knowledge and is only true belief without any additional justificatory factor
    - Coady thinks that while we do in fact call true belief knowledge sometimes, Goldman is wrong to think that true belief necessarily has intrinsic value

- Likewise, the project of happiness maximisation pretty clearly has some intrinsic value, whether or not you think it is the only thing that has intrinsic moral significance
- Goldman thinks that true belief is valuable only when it is “interesting” → these are true beliefs that answers (i) questions the agent happens to find interesting, (ii) questions the agent would find interesting if he or she had thought of them, (iii) questions that the agent has an interest in having answered
  - Interesting true belief is an intrinsic value which is neither reducible to any other value nor plausibly seen in entirely instrumental terms
  - Fricker is wrong to think that the questions about the just distribution of this epistemic good are only incidentally epistemic
- The question then becomes how to maximise true interesting beliefs via different epistemic practices
  - For instance, if a practice increases the average confidence in one’s belief in interesting and true propositions, then the practice has a positive veritistic value
  - But VSE is criticised precisely as all consequentialist theories are – that they ignore considerations of justice and focus exclusively on the mean
- So, the first question of epistemic justice reduces to thinking about affecting distributions of degrees of confidence in interesting true propositions via some epistemic practice
  - Coady: we want to think about a just distribution of degrees of confidence in interesting true propositions
    - Epistemic Difference Principle → maximin
    - A libertarian principle
  - Coady: considerations about the just allocation of true interesting beliefs can rightly trump considerations about maximising it
- Because there is some just distribution of degrees of confidence in interesting true propositions, epistemic injustice is distinctively moral in that it is the kind of injustice that occurs when someone’s right to know is violated
  - A soldier has the right to know the cause for which he is fighting, or that the public has the right to know about some of the activities of certain public figures
  - A right to know == a right to true belief – a state of intrinsic epistemic value
- The first kind of epistemic injustice is a violation of someone’s right to true belief/knowledge in terms of ignorance, the second kind of epistemic injustice is a violation of one’s right to know, focusing on avoidable error rather than merely avoiding ignorance (the first kind)
  - Coady criticises Goldman for identifying “suspension of judgement” with having a 0.5 belief because one can identify having no opinion with simply not having awareness about some proposition p at all

- We need to distinguish between the epistemic failings of ignorance and error and that these failings are not on the same scale
  - Goldman initially thought that ignorance is always preferable to error
- So there are two ways in which someone's right to know can be violated
  - Unjustly put in a position where they are ignorant about something that they are entitled to know
  - Unjustly put in a position in which they are wrong about something they are entitled to be right about
- Connection with Fricker
  - Most of Fricker's examples concern actual unjust disbelief, rather than mere unjust reduction of degree of belief i.e. the jurors' failure to believe Tom Robinson in *To Kill a Mockingbird* because he is black and are prejudiced against black people
  - Epistemic injustice occurs when someone is unjustly not believed to the degree they deserve to be believed while hermeneutical injustice occurs when someone is not understood to the extent that they deserve
- Tension with Fricker
  - The first kind of epistemic injustice (unjust ignorance or error) has become neglected and deferred to the second kind of epistemic injustice (credibility or intelligibility deficits)
    - First kind usually solved via education reform
  - To the extent that the first kind is a problem, the latter kind of epistemic injustice seems to be less of a problem, and perhaps less of an injustice: if the relatively powerless group in question is ignorant or in error about the question at hand, then it is surely just as well if they are not given much credibility, since they are likely to be wrong if indeed they have an opinion
    - Also seems to be no great problem if they cannot be understood, since if they are victims of the first kind of epistemic injustice, they are less likely to be in a position to speak the truth
  - Resolving the tension
    - Victims of the different types of epistemic injustices are similarly different → one group is the victim of unjust ignorance or error while another is a victim of unjust credibility or intelligibility
      - But plausible to be victims of both
    - Better strategy is to argue that the propositions in relation to which they are victimised are to a large extent different
      - They are unjustly ignorant or in error about p but are unjustly insufficiently believed or misunderstood about q
    - The victims of unjust ignorance or error are likely to be ignorant of or in error about propositions knowledge of which would allow them, individually or collectively, to become more socially empowered

- Individual: Someone may be denied knowledge that would allow them to become a doctor
- Collective: end up voting in ways that are contrary to their interests because they are fed falsehoods

### Extensions of Fricker's View

Luzzi's Testimonial Injustice Without Credibility Deficit (or Excess)

Central Claim: a third form of testimonial injustice, where H affords S due credibility, that is, the amount of credibility S deserves. She presents two kinds of cases intended to illustrate this category, and argues that there is a presumptive reason to think that testimonial injustice with due credibility exists. If it is denied that these cases exemplify testimonial injustice, then they either must be taken to exemplify a novel kind of epistemic, non-testimonial injustice, or bring to light a significant exegetical result

- Why Fricker rules out excess credibility as testimonial injustice
  - Case 1 (the GP): patients substantially overestimate the GP's expertise across a wide range of medical specialisms and it is assumed that she is the only doctor available and admitting her lack of expertise would compromise the trust between her and her patients. The GP is disadvantaged on account of the credibility excess through an unwanted ethical burden
    - Fricker thinks that the disadvantage is not distinctively epistemic i.e. not harmed qua knower
    - Key constraint is that the injustice must harm the victim in her capacity as a knower
  - Case 2 (the non-virtuous cogniser): a person who is afforded too much credibility that he is systematically deferred to by those around him and becomes epistemically arrogant, impervious to criticism, and insensitive to counter-evidence. He is disadvantaged in that he fails to develop into an epistemically virtuous subject
    - Fricker: the harm only comes cumulatively, and cannot form a central kind of testimonial injustice
    - Constraint: one must be harmed by the injustice on the occasion it occurs, not solely by cumulative effects
  - Case 3 (the scientists): a panel dogmatically despises a certain kind of method the scientist uses in his paper, and thus deflates his credibility due to his methodology.
    - Fricker thinks that the scientist is only incidentally a victim of testimonial injustice since the effect is highly localised and does not cut across multiple dimensions of his life → non central form of testimonial injustice → must track the subject through different dimensions of social activity
- Three constraints

- Wronged-as-a-knower: the harm wrongs the victim in her capacity as a knower
- Non-cumulative: the harm is not solely constituted by the cumulative effects of the injustice
- Systematic: the harm tracks the subject in a vast range of domains (social, political, economic etc)
- Testimonial injustice with due credibility
  - Type I: a society where a minority group G is stigmatised in the following way – non-Gs believe that Gs are sincere and tell the truth most of the time – just as much as any member of society does. Non-Gs also dogmatically and falsely believe that the beliefs held by members of Gs are systematically “Gettiered” by some divine being, so that the beliefs held by Gs are justified and true, but not known by Gs. As a result, while non-Gs believe that what Gs say is true, but not known by Gs
    - While non-Gs believe that what Gs say is true, and routinely accept the content of Gs’ testimony, non-Gs also take the view that Gs don’t know any of the propositions they i.e. Gs assert
  - Type I meets the criteria
    - Gs are routinely wronged as knowers: whenever a member of G testifies that p to a non-G, they are believed, but they are regarded by their audience as not knowing p. Therefore, this injustice does ‘undermine, insult, or otherwise withhold a proper respect for the speaker qua subject of knowledge’
    - The harm involved is not strictly cumulative: on each occasion in which a member of G gives testimony to a non-G, the latter fails to regard the member of G as a knower and the member of G is thereby wronged as a knower
    - The harm is systematic: because non-Gs fail to regard members of G as knowers of what they say regardless of the topic, the epistemic harm they suffer tracks them across virtually all dimensions of social activity
  - Type II: similar to Type I but instead of non-Gs regarding the beliefs held by Gs as Gettiered, non-Gs regard the beliefs held by Gs as true but non doxastically justified
    - non -Gs believe that Gs have generally truth-conducive belief forming mechanisms, but also believe that once Gs form their beliefs, a cognitive malfunction leads Gs to sustain their beliefs with completely irrelevant considerations
- Objections
  - Little connection with real life and unrealistic

- Reply 1: Type II cases are less far fetched – phenomenon of mansplaining wherein a man explains to a woman why something she just asserted is true, can be well accounted by positing that some men’s attitudes towards women is what happens in Type II – these men think what women say is true but they don’t hold good reasons for believing what they believe
- Reply 2: Whether the cases are actually instantiated is irrelevant
- Defines testimonial injustice as harm done by a speaker when the former gives less credibility than she deserves and thus doesn’t allow this new case
  - Reply 1: modify definition to allow
  - Reply 2: substantial similarities between Fricker’s cases and Type I-II
- Can be accommodated by Fricker if charitably interpreted since the cases in Type I-II may be cases of less than due credibility
  - However, Fricker suggests that a credibility judgement should be understood ‘in terms of the hearer perceiving the speaker as more or less trustworthy...comprises sincerity and competence’ → notion of competence not given explication
  - Strongest objection but not important

#### Dotson’s Epistemic Violence, Tracking Practices of Silencing

Central Claim: argues that epistemic violence is present via silencing, distinguishing different ways members of oppressed groups are silenced with respect to testimony. Epistemic violence is defined as the failure, owing to pernicious ignorance, of hearers to meet the vulnerabilities of speakers in linguistic exchanges. By focusing on the ways in which hearers fail to meet speaker dependency in a linguistic exchange, efforts can be made to demarcate the different types of silencing people face when attempting to testify from oppressed positions in society.

- Epistemic Violence
  - Fundamental features of linguistic communication: reciprocity as the condition that provides for the particular way in which successful illocutionary acts can be performed; when there is reciprocity among people, they recognise one another’s speech as it is meant to be taken – an audience who participates reciprocally does not merely (i) understand the speaker’s word, but also, in (ii) taking the words as they are meant to be taken, satisfies a condition for the speaker’s having done the communicative thing *she intended*
  - Reciprocity requires that an audience understands a speaker’s words and understand what the speaker is doing with the word
    - Speakers require audiences to meet their effort “halfway” in a linguistic exchange: much has been made of the dependency audiences have on speakers in the epistemology of testimony, that is,



accounts of good informants and requirements of speaker  
trustworthiness and competence for testimonial knowledge

- Speaker's attempt to communicate ultimately depends upon audiences
  - Fundamentally needed to "be heard"
- Epistemic violence in testimony is a refusal, intentional or unintentional, of an audience to communicatively reciprocate a linguistic exchange owing to pernicious ignorance
  - Pernicious ignorance should be understood to refer to any reliable ignorance that harms another person
  - Reliable ignorance is ignorance that is consistent or follows from a predictable epistemic gap in cognitive resources → reliable ignorance need not be harmful
- Potential objections to the understanding of epistemic violence
  - Objection 1: objection to the concept of pernicious ignorance because of an inclination to believe that all ignorance is harmful
    - All ignorance has the potential to be harmful and only becomes harmful only in certain circumstances
  - Objection 2: concerned that the definition of epistemic violence is too broad, particularly in light of the consequentialist understanding of pernicious ignorance
    - Consider a 3 year old child's ignorance of voting practices → not harmful because they are not allowed
    - Can be reliably ignorant about effects of fire
  - Objection 3: object to this account of epistemic violence and its relationship to the harm caused by practices of silencing by saying that all instances of silence are harmful, and the offered definition of epistemic violence in testimony does not account for that reality
    - Springs from teasing out an implication that follows from making "pernicious ignorance" a necessity condition for epistemic violence in testimony → may indicate instances of silencing, which do not result from reliable ignorance of any sort, are arguably not harmful
    - Implicit distinction between an instance vs a practice of silencing: an instance concerns a single, non-repetitive instances of an audience failing to meet the dependencies of a speaker, whereas a practice of silencing concerns a repetitive, reliable occurrence of an audience failing to meet the dependencies of a speaker that finds its origin in a more pervasive ignorance
    - Distinguishing characteristic between a practice of silencing and an instance of silencing is the kind of ignorance that

causes audiences to fail in a linguistic exchange: a practice of silencing is caused by reliable ignorance, whereas such a condition does not exist in an instance of silencing

- Epistemic violence concerns a practice of silencing that is harmful and reliable
- Epistemic violence is a failure of an audience to communicatively reciprocate, either intentionally or unintentionally, in linguistic exchanges owing to pernicious ignorance
  - Pernicious ignorance is a reliable ignorance or a counterfactual incompetence that, in a given context, is harmful
  - Children are not exempt from demonstrating pernicious ignorance and are not exempt from acting in ways that are epistemically violent
- Testimonial Oppressions manifests as practices of silencing
- Testimonial Quieting: occurs when an audience fails to identify, or at least recognise, her as a knower in order to offer testimony
  - Frequency talked about in the work of women of colour via undervaluing them i.e. dependencies as speakers are not being met → undervalue a black woman speaker is to take her status as a knower to be less than plausible
  - Understanding certain social groups according to stereotypes that strip them of the ability to be “uncontroversially” identified as knowers results from and facilitates a type of reliable ignorance → “controlling images”
  - Through her articulation of “controlling images”, Collins describes the ways in which the social identity “black woman” can be rendered an epistemically disadvantaged identity → however, that epistemic disadvantage exists only because of the dependency every speaker has on an audience to be recognised as a potential testifier or knower
  - Several kinds of harm result from the failure of a speaker to be appropriately cast as a knower → kinds of harm is a context dependent exercise
    - Fricker: intellectual courage
    - Townley: harm to one’s epistemic agency
    - Collins: harms done to the intellectual traditions of entire groups
- Testimonial Smothering: occurs because the speaker perceives one’s immediate audience as unwilling or unable to gain the appropriate uptake of proffered testimony
  - Truncating of one’s own testimony in order to insure that the testimony contains only content for which one’s audience demonstrates testimonial competence
  - Exists in testimonial exchanges charged with complex social and epistemic concerns

- Three circumstances that routinely exist in instances of testimonial smothering
  - Content of the testimony must be unsafe and risky
  - Audience must demonstrate testimonial incompetence with respect to the content of the testimony to the speaker
  - Testimonial incompetence must follow from, or appear to follow from, pernicious ignorance
- As a result of these circumstances, a speaker smothers her/his testimony: but this silencing should be seen as a type of coerced silencing
  - Coerced silencing tends to require some sort of self-silencing on the part of the speaker
- Crenshaw highlights what has been historically seen as unsafe, risky testimony in some “nonwhite” communities when she points to women-of-colour silence around the occurrences of domestic violence
  - Highlights the public silences on domestic violence and rap in nonwhite community
  - Domestic violence within, for example, African American communities is often shrouded in silence given the possibility that testimony about domestic violence can be understood to corroborate stereotypes concerning the imagined “violent” black male and African Americans have often sought to engage in politics of respectability to fend off racist stereotypes

#### Maitra’s The Nature of Epistemic Injustice

Central Claim: wants to focus on making a principled distinction between cases that should and should not be counted as cases of injustice; and that Fricker’s definition may seem too broad and too narrow

- Broadness: not all credibility deficits of the negative identity-prejudicial stereotype can be considered epistemic injustice
  - Example: Zara is working her way through the news of the day online and as usual there are more news items than she has time to read. If she clicked on every intriguing headline, she would get nothing else done for the day so she uses rough heuristics such as some political leanings she can’t take seriously, even though she would like to read a broad range of leanings. So, she comes across an item that opens with the writer identifying himself as a “committed tea-partier” and she ignores it and deletes the item.
    - Even if the writer is in fact trustworthy, intuitively, Zara does no injustice to the writer by dismissing him → she doesn’t owe it to him to avoid a credibility deficit → may be that Zara harms herself or fails to carry out some obligation she owes to herself, but injustice is to others

- Even if we do have enough time to make measured credibility judgements, it is not clear that we owe the necessary attention to every source of testimony that impinges upon us
  - Several of those sources intrude upon me (the hearer) even though I would rather not engage
- Too broad: not all credibility deficits due to identity prejudices result in injustices to the speakers
  - We have no general obligation to match our credibility judgements to the evidence in every case
  - Fricker's central case does have such an obligation and this is due to a background of certain special interpersonal relationships that already exists between the speaker and hearer → for the Tom Robinson example, in agreeing to serve as a juror in a court of law, a person clearly undertakes an effort to afford each witness the credibility that is demanded by the evidence
  - Zara stands in no special interpersonal relationship to the writer she dismisses → obligations emerge from the background of interpersonal relationships
  - Upshot: even if the hearers in these cases make no credibility judgement at all, they still commit an injustice (so not a deflated credibility judgement)
- Narrowness: there can be testimonial injustice without identity prejudice/with epistemic bad luck
  - Fricker attempts to excuse epistemic bad luck as a reason why some cases where one receives deflated credibility is not a case of epistemic injustice
    - Example: a person who is just unable to make eye contact and seems suspicious purely as a function of his personality → sincere but shy vs a speaker who is an honest used car salesman vs a speaker who truthfully proclaims that the house is on fire, but disregarded because of a long history of telling deliberate lies → because of the continuity between the three cases, if the third case is not a case of injustice, neither is the first
  - What our judgements are depend on who the speaker and the hearer are, and what relationship obtains between them
    - In the first, our judgements change if the speaker and hearer are neighbours vs if the speaker is rape victim and the hearer a policeman
  - Fricker argues that it is at least sometimes possible for a virtuous hearer to correct for the impact of identity-prejudicial stereotypes on her credibility judgements → can be achieved via additional familiarity by getting to know the person

- Whether the policeman commits an injustice depends not merely on whether the stereotype in question is reliable and nonprejudicial, but also on what else he could have done, beyond relying on the stereotype, to come to recognise that the speaker is indeed telling the truth
  - So, the differences among cases of epistemic bad luck might lead us to regard that some cases of this sort as cases of testimonial injustice
- Narrowness: Fricker's account fails to count as prejudicial certain stereotypes that intuitively should so count
  - Fricker's characterisation of a negative identity-prejudicial stereotype: a widely held disparaging association between a social group and one or more attributes, where this association embodies a generalisation that displays some (typically, epistemically culpable) resistance to counter-evidence owing to an ethically bad affective investment
  - Identity prejudices are generally marked by resistance to counter-evidence → but this isn't enough to make a stereotype count as identity-prejudicial, if that resistance arises from a nonepistemically culpable mistake
    - Fricker's example of Solomon, who comes from an isolated community with no women and thinks that women are incapable of abstract thought → once he ventures out into the real world and meets women, retaining such ideas makes it identity-prejudicial
  - Two variations to the Solomon case:
    - Highly localised samples and misleading evidence: David thinks that black people are lazy and that they prefer collective unemployment checks to actually holding down a paying job that requires effort → based on the observation of the black residents in his apartment building, who are largely unemployed, and don't seem to be making much effort to rectify the situation
      - David doesn't know that there are many black residents who fit the stereotype and even though it would have taken him very little effort to get to know them, David doesn't want to get to know them for he doesn't much like black people and so tries not to associate with them any more than he has to
      - Nevertheless, had he come to know these neighbours, David is fairminded enough that he would have given up his stereotype
      - But David's stereotype still seems prejudice even though it fails to satisfy Fricker's criterion of being resistant to counter-evidence → this is because the idea of a prejudice is that it is a prejudgment without a proper regard to evidence
      - Upshot: lacking a proper regard to evidence does not always involve resistance to counter-evidence

- Small samples: Paul has lived all his life in a small and isolated community and subscribes to the view that women aren't abstract thinkers and he bases this view on observation of the small handful of women he has known in his lifetime. But like David, Paul is fair minded enough that, were he to be confronted with counter-evidence to the stereotype, he would not continue to hold on to it
      - Paul is still guilty of 'pre-judgement' and he forms this stereotype on the basis of a very small sample → still guilty even if the stereotype were true
  - Failing to gather easily accessible counterevidence and generalising too quickly from a small sample, are both genuine epistemic mistakes, for which agents can be epistemically culpable
- Hermeneutical injustice
  - Suffered by agents when some significant area of their social experiences is obscured from collective understanding by hermeneutical marginalisation
    - A group is hermeneutically marginalised when hermeneutical participation with respect to significant areas of social experience is unequal to that of other groups, and that inequality redounds to this group's disadvantage
  - Fricker says that testimonial injustice is a matter of individual identity prejudice and that hermeneutical injustice is a matter of structural identity prejudice i.e. it is difficult to isolate specific agents as blameworthy of the injustice
- Maitra argues that we should not accept the asymmetry between individual/structural injustice and that each kind of epistemic injustice can instead result from the combination of the two kinds of prejudice
  - Individual prejudice can contribute to hermeneutical injustice: consider a particularly unsympathetic colleague who ignores one's experiences no matter how well articulated and who thought that women who complain about male advances in the workplace are really just hysterical at the slightest provocation
    - Individual identity prejudice on the part of the colleague → but can't this be testimonial?
  - Possible that some testimonial injustices be located on the structural end of the spectrum
  - Differences between hermeneutical and testimonial injustices does not seem dispositive of the issue of epistemic injustice → both kinds of prejudice can contribute to each kind of epistemic injustice, and token injustices of either kind still varies with respect to the degree to which each kind of prejudice is involved

## Part II: Is epistemic injustice distributive?

### Epistemic Injustice is distributive

Coady's argument that epistemic injustice is distributive justice: challenges Fricker's distinction between discriminative and distributive epistemic injustice and argues that both forms are distributive in nature (or can be fruitfully treated as such)

#### Testimonial Injustice

- Fricker's objection of conceiving credibility as a good: (i) the obviousness argument (obvious what the correct distribution is) and (ii) the finiteness argument
- Against the obviousness argument: "obvious" principle governing obligations of hearers
  - Suppose by way of analogy that someone were to say that there is no puzzle of the fair distribution of wealth, since it is obvious that everyone should receive the wealth that he or she deserves
    - But this does not answer the question of how much wealth people deserve which is the core question → do they deserve equal wealth in proportion to the hours they have worked, their intelligence, their good luck etc
  - Fricker does not address the most important questions about the just distribution of credibility, questions about the nature of the hearer's obligations to seek out and interpret evidence that a speaker is offering the truth, especially in situations in which the speaker has less social power than the hearer
- Against the finiteness argument: Coady thinks that credibility is clearly finite
  - There is short supply for credibility and thus competition for it
  - In Fricker's example, Tom Robinson's testimony and the corresponding low credibility is linked to the high credibility they assign to the testimony of accusers
    - Credibility is a comparative relation → how credible is piece of testimony X vs Y?
    - Zero sum game
  - While not always a zero-sum game, it is demonstrable of the competition that one faces
    - Competition for credibility is a pervasive feature of much of our social and political life → unjustifiably low credibility assigned to testimony of oppressed groups in inextricably linked to unjustifiably high credibility that privileged groups enjoy
- Fricker's attempt to distinguish between "distributive goods" such as wealth and healthcare on one hand and the credibility on the other is mistaken
- Coady: testimonial injustice parallels economic injustice in having a kind of relational and more specifically causal structure: my having less than I deserve is causally related to someone else having more than he deserves

- Merely that economic injustice consists in someone getting less wealth than he or she deserves doesn't get to the matter: better to characterise it as someone getting less wealth than he or she deserves as a result of others getting more than they deserve → can be generalised to credibility
- Corollary: Fricker is wrong to leave credibility excesses out of the notion of testimonial injustice in general because of this causal structure embedded in the notion of credibility injustice

### Hermeneutical Injustice

- Fricker implicitly suggests hermeneutical injustice is not distributive because it is classified along with testimonial injustice as a form of discriminatory epistemic injustice, which is contrasted with distributive injustice
  - Hermeneutical injustice, unlike testimonial injustice, occurs "prior to communicative activity" and defined as "the injustice of having some significant area of one's social experience obscured from collective understanding owing to hermeneutical marginalisation"
  - Hermeneutic marginalisation is explained as a matter of belonging "to a group which does not have access to equal participation in the generation of social meanings"
- Examples of denied access to equal participation in the generation of social meanings
  - Sexual harassment: a woman suffering from sexual harassment prior to the time when we had this concept and word to name the experience → coining the words and phrases to explain one's social experiences and the practices that give words and phrases the public meaning they have
    - Some social groups are in a better position to generate these meanings
- Coady: hermeneutical injustice is implicitly a principle of distributive justice: the egalitarian principle according to which it is a requirement of justice that everyone should have equal access to participation in the generation of social meanings
  - Everyone should have equal hermeneutic power → marginalisation is precisely to have less than an equal share
- Is this characterisation vulnerable to the obviousness argument Fricker launched against credibility being thought of as distributive
  - Apparent Difference: justice requires us to distribute credibility unequally i.e. nothing unjust about unequal distributions
  - Hermeneutic power might have to be distributed unequally: consider the case of neo-nazis → should not have much impact on generation of social meanings and currently are seemingly hermeneutically marginalised → but not a case of injustice



- So, it is also an interesting question of how much hermeneutical access we should give to each group → not obvious at all
- So no right to equal hermeneutical power and also the hermeneutical power is finite and relational/causal i.e. there can be competition for it
  - So also distributive even on Fricker's account

### **Against the distributive thesis**

Fricker's objection to epistemic injustice or credibility being framed via the distributive model

- Credibility excess is not an injustice even though it can be cast as someone having gotten more than his fair share of a good – but “credibility is not a good that belongs with the distributive model of justice”
- Reason 1: Credibility is a concept that wears its proper distribution on its sleeve → unlike goods that are fruitfully dealt with along distributive lines, there is no puzzle about the fair distribution of credibility
  - The hearer's obligation is simply that she must match the level of credibility she attributes to her interlocutor to the evidence that he is offering the truth
  - Assumption: for something to be cast as a matter of distributive justice, there must be some sort of debate over what the correct distribution is; credibility therefore is a bit like respect where there is an obvious (minimal) level to be attributed
- Reason 2: Credibility is not finite like the typical kinds of goods cast along the distributive framework
  - Goods that are considered to be objects of distributive justice (like Rawls' primary goods) are such goods that are generally in short supply; there may soon be certain competition for them which gives rise to the ethical puzzle about the justice of this or that particular distribution
- Fricker (here I think wrongly) assumes that epistemic and distributive injustice are mutually exclusive for she writes after denying epistemic injustice as distributive: “the idea is to explore testimonial injustice as a distinctively epistemic injustice, as a kind of injustice in which someone is wronged specifically in her capacity as a knower”